

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Butler	Team: Squad #05	CCRB Case #: 201502015	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 03/13/2015 6:51 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/13/2016	Precinct: 83
Date/Time CV Reported Thu, 03/19/2015 2:36 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/19/2015 2:36 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Rahul Sahni	03239	949601	083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Guiseppe Cutaia	03351	938309	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Rahul Sahni	Discourtesy: PO Rahul Sahni acted rudely toward § 87(2)(b)	A . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via phone on March 19, 2015. On March 13, 2015, at approximately 6:51 a.m., PO Rahul Sahni and PO Guiseppe Cutaia stopped § 87(2)(b) for parking in a pedestrian crosswalk at § 87(2)(b) in Brooklyn, and PO Sahni issued § 87(2)(b) a summons for the infraction by throwing the summons through § 87(2)(b)'s open car window, causing it to strike § 87(2)(b) in the chest (**Allegation A**) (Encl. 3B).

Mediation, Civil, and Criminal Histories

§ 87(2)(b) rejected mediation § 87(2)(b). On March 25, 2015, a notice of claim request was submitted, and it will be added to the case file upon its return to the agency. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

§ 87(2)(b) has filed one other complaint with the CCRB § 87(2)(g)

PO Sahni has been a member of the NYPD for four years and has been the subject of two prior CCRB complaints involving three allegations. § 87(2)(g)

Findings and Recommendations

Identification of the Subject Officer

PO Sahni's name and tax registry number are listed on § 87(2)(b)'s summons, and § 87(2)(b) observed PO Sahni write this summons during the incident (Encl. 3B and Encl.5A). In addition, § 87(2)(b) saw PO Sahni several weeks after the incident, recognized him as the subject officer, and obtained his shield number, 03239 (Encl.3C). Lastly, PO Sahni's memo book entry confirms that he issued a summons to § 87(2)(b) for parking in a pedestrian ramp at the location of the incident (Encl.4B-C).

Allegation A- Discourtesy: PO Rahul Sahni acted rudely toward § 87(2)(b)

§ 87(2)(b) alleged that PO Sahni issued him a summons for parking in a pedestrian ramp by throwing the summons through his open window, causing it to strike § 87(2)(b)'s chest (Encl. 3B).

Neither PO Sahni nor PO Cutaia possessed independent recollections of the incident (Encl.4G-M). Neither PO Sahni nor PO Cutaia recalled how PO Sahni issued the summons to § 87(2)(b) and neither officer recalled whether PO Sahni threw the summons through § 87(2)(b)'s open car window, causing it to land on him (Encl. 4G-M).

§ 87(2)(g). During his initial intake call and his CCRB interview, § 87(2)(b) stated that the fact that PO Sahni issued him a summons without legal justification was one of his primary motivations in filing the complaint (Encl. 3B). During his interview, § 87(2)(b) also stated that he believed his CCRB complaint would positively influence the outcome of his summons dispute even though he was informed that the complaint would have no effect in court (Encl. 3B). § 87(2)(g)

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§ 87(2)(g) PO Sahni documented in his memo book that he issued a parking summons to an individual for parking in a pedestrian ramp at the time of the incident, and while he did not document § 87(2)(b)'s name, he did provide an exact description of § 87(2)(b)'s vehicle and report § 87(2)(b)'s license plate number (Encl.4B). PO Sahni's name and tax registry number are also clearly legible on § 87(2)(b)'s summons (Encl. 5A). § 87(2)(g)

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§ 87(2)(g) In addition, PO Sahni and PO Cutaia were working as summons officers during the incident, and, according to their memo books, they issued a large number of VTL summonses during their tour (Encl. 4A-E and Encl. 4I-K). § 87(2)(g)

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§ 87(2)(g) Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date